DIFC Rules of Court Order No. 1 of 2014

FEBRUARY 01, 2015 COURT ADMINISTRATIVE ORDERS

I, Michael Hwang, Chief Justice (/glossary/chief-justice/) of the DIFC Courts (/glossary/difc-courts/), make the following Order:

In exercise of the powers conferred on me by Article 8(3)(a) of Dubai Law No. 9 of 2004, as amended; and

after having reviewed:

Dubai Law No. 9 of 2004 in respect of the DIFC (/glossary/difc/); Dubai Law No. 12 of 2004 in respect of the Judicial Authority at the DIFC; DIFC Law No. 10 of 2004 in respect of the DIFC Courts Law; DIFC Order No. 1 of 2007 in respect of the Rules (/glossary/rules/) of the DIFC Courts; Dubai Law No. 7 of 2011 Amending Certain Provisions of Dubai Law No. 9 of 2004 in respect of the DIFC; and

following two one-month public consultation periods,

1. This Order may be cited as the Rules of Court (/glossary/court/) 2014 Order No. 1 of 2014.

2. By this Order, I issue the attached Rules of the DIFC Courts 2014 (the "Rules"). The Rules may be cited as "The Rules of the DIFC Courts 2014" and may be abbreviated as "RDC 2014".

3. Subject to the provisions of this Order, the Rules of the DIFC Courts in force prior to 7 April 2014 are repealed.

4. Subject to this Order, the Rules shall have effect in relation to all proceedings in the Small Claims Tribunal (/glossary/tribunal/), the Court of First Instance and the Court of Appeal, insofar as the matters to which the Rules relate are within the jurisdiction (/glossary/jurisdiction/) of these Courts (/glossary/court/) and, unless the relevant Court orders otherwise, shall apply to any pending proceedings.

5. The Rules will come into force on 7 April 2014. Any Order of Court made under the repealed Rules of the DIFC Courts and in force immediately before 7 April 2014 shall, so far as it is not inconsistent with the provisions of the Rules, continue to be in force as if made under the Rules until it is revoked or repealed by a subsequent Order of Court made under the Rules.

Michael Hwang Chief Justice of the DIFC Courts

Issued: 7 April 2014